

		Penal Code section 476a makes it a crime to willfully or with the intent to defraud make or deliver a check while knowing there are insufficient funds for its payment. As discussed above, Plaintiffs sufficiently alleged Morado represented GCI would pay on the \$75,000 post-dated check while knowing she could not and would not actually pay. (FAC ¶¶ 110, 111.) Plaintiffs allege Morado made these representations to induce Plaintiffs to enter into the Weber-GCI Stock Sale Agreement. (FAC ¶ 110.) Additionally, Health & Safety Code section 1748, subdivision (a) and Code of Regulations Title 22, section 74659 prohibit the operation of a hospice/home health agency without a license. Plaintiffs allege Morado did not change over the licensed ownership of PEC Hospice or PEC Healthcare and that those licenses were not transferable to Morado or GCI pursuant to California law. (FAC ¶¶ 72-75.) As such, Plaintiffs allege Morado and GCI have been operating PEC Hospice and PEC Healthcare without obtaining a license from the California Department of Public Health since at least 7/1/25. (FAC ¶ 77.) This is sufficient to allege a violation of Health & Safety Code section 1748, subdivision (a) and Code of Regulations Title 22, section 74659. The Court OVERRULES the demurrer to the fifth cause of action.
13.	BEEHIVE.COM, LLC VS. GLEISINGER 2023-01348798	MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN) Defendant Joseph Allan Gleisinger’s Motion to Compel Compliance with Deposition Subpoenas is DENIED. On 4/22/25, the Court appointed a discovery referee regarding “all discovery disputes in this matter...” Defendant contends that, “A discovery referee’s role, if any, does not extend to adjudicating third-party subpoena enforcement” under Code of Civil Procedure section 1987.1.” (Motion, 1:15-16.) However, Defendant stated he “notified” the referee of this dispute in November 2025. (Id. at 3:25-28, Ex. F.) On 3/24/26, the Court granted Plaintiff’s motion to enforce the discovery referee order at risk of further sanctions if Defendant did not comply, but Defendant did not withdraw the present motion. Plaintiff opposes the motion on the grounds that, “Gleisinger offers no legal authority for this proposition or any legal authority that would undermine the Court’s Order Appointing Referee.” (Opp., 2:24-25.) Defendant requests sanctions of \$1,050.00 based on Gleisinger’s filing of the present motion in violation of the referee order, which has forced Plaintiff to expend 3 hours of attorney time at \$350/hour.

		In reply, Defendant states, “Gleisinger accepts that the May 5, 2025 reference extends to this discovery dispute and is concurrently submitting the complete motion record to the Referee in compliance with the Court’s July 1, 2026 Order.” (Reply, 2:20-21.) Gleisinger asserts the referee has failed to adjudicate this dispute. However, Gleisinger has made contradictory assertions regarding whether the referee has the authority to adjudicate this issue and the “Notice” Gleisinger filed with the referee was not clearly identified as a request for the referee to adjudicate the issue. The motion was filed on 1/30/26 in violation of this Court’s 4/22/25 order appointing a discovery referee. Defendant failed to withdraw this motion after being admonished to comply with that order. Plaintiff was forced to incur attorney fees responding to the motion which should have been pursued via the discovery referee. The motion is therefore denied and Plaintiff’s request for sanctions against Defendant is granted in the amount of \$1,050.00, due and payable within 30 days.
14.	LAW OFFICES OF MARK B. PLUMMER, PC VS. ALAI 2018-01002061	1. MOTION TO VACATE Defendant Nili Alai’s Motion to Amend or Vacate the 3/4/26 Order Reopening Discovery is DENIED. On 3/4/26, the Court granted Plaintiffs/Cross-Defendants’ ex parte application to reopen discovery as to movant’s First Amended Cross-Complaint. The 3/3/26 application to reopen discovery was served on 3/3/26 at 11:40 a.m. via email. The Court ruled on the application at approximately 1:30 p.m. on 3/4/26. The order stated no opposition had been filed and there were no appearances by any party. Defendant contends the application was untimely noticed and the Court did not have the opportunity to consider Defendant’s opposition, which was filed at approximately 9:30 a.m. on 3/4/26. California Rules of Court, Rule 3.1203(a) provides, “A party seeking an ex parte order must notify all parties no later than 10:00 a.m. the court day before the ex parte appearance, absent a showing of exceptional circumstances that justify a shorter time for notice.” Therefore, Plaintiffs’ notice of the application was nearly two hours late. Plaintiffs’ counsel also did not submit a declaration regarding notice in compliance with Rule 3.1204. This motion was filed on 3/24/26. The motion did not comply with the statutory ten-day deadline for a motion for reconsideration. (Code Civ. Proc. § 1008(a).) Moreover, although the Court retains inherent power to vacate or modify its prior discovery orders, the Court declines to do so here.